

Our proposed House of Lords amendment to the **Public Office (Accountability) Bill**

EXPLANATORY STATEMENT

This amendment would include members of the UK's four legislatures within the duty of candour and offence of misleading the public, safeguard parliamentary privilege and political opinion, treat certain communications by legislators, Ministers and mayors as official, and treat undermining public confidence, including over war, elections and referendums, as harm.

50 words

THIS IS WHERE THE AMENDMENT GOES

Schedule 2, page 53, line 17, at end insert—

(14) Subject to sub-paragraph (2), “public official” also includes a member of either House of Parliament, the Scottish Parliament, Senedd Cymru or the Northern Ireland Assembly.

(15) Neither section 5 nor section 12 applies to anything said or done by any person in proceedings of either House of Parliament, the Scottish Parliament, Senedd Cymru or the Northern Ireland Assembly. Nothing in sub-paragraphs (14) to (17) limits parliamentary privilege. Outside those proceedings, a person does not commit an offence under section 5 or section 12 merely by expressing an honestly held political belief or opinion.

(16) This sub-paragraph applies to a person within sub-paragraph (14), the Mayor of London, a mayor for the area of a combined authority or combined county authority, a Minister of the Crown, a member of the Scottish Government, a junior Scottish Minister, a member of the Welsh Government or a Minister or junior Minister within the meaning of the Northern Ireland Act 1998. For the purposes of sub-paragraph (2) and section 12, such a person is treated as acting in their capacity as a public authority or public official, as applicable, and exercising their functions as such when communicating with the public, by any means, about matters of significant concern to the public, including public policy, national security, public expenditure, the allocation of public assets or resources, legislative or democratic processes, and the environment. Section 12(4) does not apply to that person in respect of such a communication. This sub-paragraph does not apply to communications concerning solely a person's private life, family life or private business. Neither sub-paragraph (14) nor this sub-paragraph treats a member of the House of Lords who is disqualified under section 137(3) of the Constitutional Reform Act 2005 from sitting or voting in

that House as acting in their capacity as a public official, or exercising their functions as such, by virtue of that membership when communicating in the exercise of judicial functions. In sub-paragraphs (16) and (17), “the public” has the same meaning as in section 12.

(17) In relation to a communication to which sub-paragraph (16) applies, for the purposes of section 12(3)(b), “harm” also includes undermining the confidence of the public in public authorities, public officials, the exercise of public functions or democratic processes. Such harm may arise, in particular, where the communication is made for the purpose of—

- (a) taking the United Kingdom to war or into other military action,
- (b) influencing the result of an election,
- (c) influencing the result of a referendum,
- (d) concealing the causes of, or responsibility for, a disaster or other event involving death or serious injury,
- (e) concealing a risk to public health or safety, or
- (f) concealing wrongdoing by a public authority or public official, including a breach of the law or of rules, or the misuse of public money.